

24STCV28736 24STCV28736

County: los-angeles
Division: Civil Law and Motion
Department: 506
Hearing date: 2026-08-13
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Case Number: 24STCV28736 Hearing Date: August 13, 2026 Dept: 506

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - CENTRAL DISTRICT

JUNIUS F. JOHNSON, JR., et al.,

Plaintiffs,

vs.

ALHASSAN B. MACAULEY, et al.,

Defendants.

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CASE NO.: 24STCV28736

[TENTATIVE] ORDER DENYING DEMURRER AND MOTION TO STRIKE

Dept. 506

8:30 a.m.

August 13, 2026

On November 1, 2024, Plaintiff Autumn Yancey-Estime filed this action against Defendant Alhassan Macauley (individually and as Trustee of The Alhassan B. Macauley Revocable Trust).

On December 19, 2025, Defendant filed a combined demurrer and motion to strike. "Motions to strike and demurrers should be filed as separate documents." (Weil & Brown, Cal. Prac. Guide: Civil Procedure Before Trial (The Rutter Group June 2026 Update) ¶ 7:162.1.)

DISCUSSION

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirza (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context, accepting the alleged facts as true. (Nolte v. Cedars-Sinai Medical Center (2015) 236 Cal.App.4th 1401, 1406.)

The court may, upon a motion or at any time in its discretion: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc., § 436, subds. (a)-(b).)

According to Defendant, "the Complaint is brought 'by and through a guardian ad litem' for a deceased individual." (Motion at p. 5.) Plaintiff passed away after this action was filed, and his former guardian ad litem will apply to be appointed as his personal representative. (Opposition at p. 3.)

Defendant recites the requirements that a quiet title complaint must be verified and include specific information. (Motion at p. 5.) There is no argument provided that the Complaint contains or omits this required information. Similarly, Defendant states information about cancellation of written instrument, slander of title, declaratory relief, punitive damages, attorney fees, damages, and standing, but he again fails to present any facts or arguments. (Id. at pp. 5-6.) The Court will not attempt to manufacture an argument when Defendant presents none. "[P]arties are required to include argument and citation to authority in their briefs, and the absence of these necessary elements allows this court to treat [an] issue as waived."

(Interinsurance Exchange v. Collins (1994) 30 Cal.App.4th 1445, 1448.)

The motion is denied.

CONCLUSION

The combined demurrer and motion to strike is DENIED. Defendant Alhassan Macauley is ordered to file an answer within 10 days.

An Order to Show Cause Re: Dismissal For Failure to Substitute Plaintiff's Personal Representative is scheduled for November 13, 2026 at 8:30 a.m.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit. If all parties in the case submit on the tentative ruling, no appearances before the Court are required unless a companion hearing (for example, a Case Management Conference) is also on calendar.

Dated this 13th day of August 2026

Hon. Thomas D. Long

Judge of the Superior Court